

**Tentative Rulings and Resolution Review Hearings
July 7, 2025
Department 42**

THIS CALENDAR WILL BE CALLED IN DEPARTMENT 53

Those appearing by CourtCall should use the dial in for Department 42.

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

10:30 a.m.

BOUCHER VS. SAGEWOOD APARTMENTS, ET AL.

Case Number: 25CV-0207292

Tentative Ruling on Motion to Compel Further Responses: This is a personal injury action filed March 18, 2025. Plaintiff alleges she tripped on an uneven sidewalk at the Sagewood Apartments, and sustained injuries to her elbows and wrists. Plaintiff seeks to compel further responses to Form Interrogatory 4.1. Defendants oppose the motion.

Merits. The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A party propounding interrogatories may move for further responses if the responses are evasive, incomplete or contain unmeritorious objections. CCP § 2030.300(a)(1) & (3).

Form Interrogatory 4.1 seeks insurance coverage information. Plaintiffs propounded it on all Defendants on April 1, 2025. Defendants responded with a joint global objection on the grounds that the Form Interrogatory is vague, ambiguous, unintelligible, and an invasion of Defendants’ right to privacy.

CCP § 2017.210 provides that a party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment. This discovery may include the identity of the carrier and the nature and limits of the coverage. A party may also obtain discovery as to whether that insurance carrier is disputing the agreement’s coverage of the claim involved in the action, but not as to the nature and substance of that dispute. Information concerning the insurance agreement is not by reason of disclosure admissible in evidence at trial.

Plaintiffs are entitled to the requested information by statute. The form interrogatory is not vague, ambiguous or unintelligible. There is no exemption for Defendants who purport to “waive” insurance coverage.

Sanctions. Sanctions are mandatory under CCP §§ 2030.300(d) unless the party subject to sanctions acted with substantial justification or other circumstances would make the imposition of sanctions unjust. Defendant has failed to show substantial justification for their refusal to provide the information sought. Having found no substantial justification or circumstances making imposition of sanctions unjust, reasonable sanctions will be imposed.

A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests \$1,500 in attorney fees, for 6 hours of work on this motion including appearing at the hearing, at an hourly rate of \$250. The Court finds the hourly rate and hours spent to be reasonable. Sanctions will be imposed in the amount of \$1,500.

Plaintiff's Motion to Compel Further Responses to Form Interrogatories is **GRANTED**. Defendant is ordered to provide verified responses to Form Interrogatory 4.1 within 15 days of notice of entry of order. Sanctions are imposed in the amount of \$1,500 against Defendants and Counsel. Sanctions are payable within 30 days of notice of entry of order. A proposed order has been lodged and will be executed.